

STATE OF NEW YORK

5407--A

Cal. No. 1493

2025-2026 Regular Sessions

IN SENATE

February 21, 2025

Introduced by Sens. HARCKHAM, ASHBY, BORRELLO, CANZONERI-FITZPATRICK, FERNANDEZ, HELMING, JACKSON, PALUMBO, ROLISON, C. RYAN, STEC, TEDISCO, WEBB, WEBER, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Mental Health -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged and said bill committed to the Committee on Rules -- ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the mental hygiene law, in relation to the "First Responder Peer Support Program Act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "First
2 Responder Peer Support Program Act".

3 § 2. The mental hygiene law is amended by adding a new section 7.51 to
4 read as follows:

5 § 7.51 First responder peer support program.

6 (a) For the purposes of this section, the following terms shall have
7 the following meanings:

8 1. "The program" shall mean the "first responder peer support program"
9 established by this section.

10 2. "Eligible entities" shall mean an entity or county first responder
11 peer program which submits to the commissioner an application, in a form
12 prescribed by the commissioner, containing such information and assur-
13 ances as the commissioner may require to provide initial and continued
14 training in mental illness, including but not limited to, helping indi-
15 viduals gain a better understanding about the effects of trauma, repeti-
16 tive exposure, signs and symptoms of trauma, triggers of a traumatic
17 event, coping mechanisms, suicide or self-harm prevention, as well as
18 available tools, resources, and local mental health services for first
19 responder peer volunteers, volunteer and paid individuals who are

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 trained to respond to emergency situations and provide immediate assist-
2 ance and care to those in need. This would include individuals who work
3 as firefighters, police officers, probation officers, parole officers,
4 warrant officers in the department of corrections and community super-
5 vision, constables or police constables of a town or village, uniform
6 court officers of the unified court system, parks and recreation forest
7 rangers employed by the office of parks, recreation and historic preser-
8 vation, 9-1-1 operators, 9-8-8 operators, emergency dispatchers, emer-
9 gency medical services personnel, coroners, medical examiners, and peace
10 officers designated pursuant to subdivision twenty-six of section 2.10
11 of the criminal procedure law.

12 (b) The commissioner, in consultation with the commissioner of the
13 department of health, the office of fire prevention and control, the
14 municipal police training council, and the superintendent of state
15 police, shall, subject to appropriation, establish a statewide grant
16 program to be known as the "first responder peer support program". The
17 program shall provide grants, with appropriations therefor, to eligible
18 entities for the purpose of establishing peer-to-peer mental health
19 programs for first responders. Local governmental units shall be eligi-
20 ble to apply for and receive such grants.

21 (c) The commissioner shall establish uniform standards applicable to
22 the program, in consultation with the New York state sheriffs' insti-
23 tute, the New York state sheriffs' association, and firefighters associ-
24 ation of New York state. Such standards shall include, but not be limit-
25 ed to, initial and continued evidence-based, trauma-informed training
26 for first responder peer volunteers, including suicide prevention,
27 general mental health literacy, science of addiction and recovery, and
28 training that focuses on resilience of the first responder. Such stand-
29 ards shall also address administrative staffing needs and best practices
30 for addressing the needs of each first responder served, including, but
31 not limited to, a warm handoff to mental health services for individuals
32 identified as being in duress.

33 (d) The commissioner shall not require the recipient of any grant
34 under this section to maintain records on first responders seeking
35 support or report any personal identifying information directly or indi-
36 rectly to the commissioner, a first responder's employer, or a first
37 responder's organization.

38 (e) Except as may be required under applicable state or federal law,
39 all communications and statements of first responders under this section
40 shall be confidential and shall not be redisclosed to others, except in
41 situations involving imminent danger to the first responder or others,
42 including threats of suicide, self-harm or violence to others, suspected
43 child abuse or neglect, or to protect vulnerable adults.

44 (f) 1. Each grant recipient shall be required to provide an annual
45 report to the commissioner, consistent with standards established by the
46 commissioner, describing the training and services funded by the grants,
47 how such funds were allocated, a list of entities that received grant
48 funds, the number of persons served by each grant recipient, and recom-
49 mendations for future grant allocations. Such reports shall contain no
50 personally identifiable information.

51 2. The commissioner shall aggregate the data and recommendations
52 received from grant recipient annual reports and develop an aggregate
53 annual summary of such data and recommendations in an annual report,
54 including any appropriate recommendations of the commissioner for future
55 funding needs or program changes to ensure the most effective means of
56 providing peer support for first responders. The annual report shall be

1 submitted to the governor, the speaker of the assembly and the temporary
2 president of the senate no later than November first, two thousand twen-
3 ty-six, and annually thereafter.
4 § 3. This act shall take effect on the one hundred twentieth day after
5 it shall have become a law.